

CHAPTER 16.**An Act to prohibit the importation of Plumage.**

[1st July 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Prohibition
on importa-
tion of
plumage.

1.—(1) Subject to the provisions of this Act, a person shall not import into the United Kingdom the plumage of any bird.

39 & 40 Vict.
c. 36.

(2) Goods prohibited to be imported by virtue of this Act shall be deemed to be included among the goods enumerated and described in the table of prohibitions and restrictions inwards contained in section forty-two of the Customs Consolidation Act, 1876, and the provisions of that Act and of any Act amending or extending that Act shall apply accordingly.

Exemptions
and licences.

2.—(1) The plumage of the following birds, namely—

- (a) birds for the time being included in the Schedule to this Act;
- (b) birds imported alive;
- (c) birds ordinarily used in United Kingdom as articles of diet;

is excepted from the prohibition on importation imposed by this Act.

(2) The prohibition on importation imposed by this Act shall not apply to any plumage imported as part of the wearing apparel of a passenger if, in the opinion of the Commissioners of Customs and Excise, that plumage is bonâ fide intended and is reasonably required for the personal use of the passenger.

(3) Where an application is made to the Board of Trade for the addition to or removal from the Schedule to this Act of the name of any bird, the Board may, after taking into consideration the recommendation made in the matter by the advisory committee to be appointed under this Act, by order add to the said Schedule or remove therefrom, as the case may be, the name of that bird.

An Order made under this provision shall specify the name of the species and of the order, if any, to which the bird mentioned in the Order belongs.

(4) The Board of Trade may grant to any person a licence subject to such conditions and regulations as they may think fit authorising the importation of plumage for any natural history or other museum, or for the purpose of scientific research, or for any other special purpose.

(5) Any person importing plumage under a licence granted in pursuance of this section shall on importation deliver to an officer of Customs and Excise a written declaration as to the nature of the plumage and the purpose for which it is imported, and any person importing any plumage which is alleged to be excepted from the prohibition on importation imposed by this Act shall, if so required, deliver to an officer of Customs and Excise a written declaration as to the nature of the plumage and the ground on which it is alleged to be so excepted.

(6) Anything authorised or required under this Act to be done to or by the Board of Trade may be done to or by the President, a secretary or an assistant secretary, of the Board, or to or by any person authorised in that behalf by the President of the Board.

3. Within four months of the passing of this Act, the Board of Trade shall appoint an advisory committee consisting of—

Appoint-
ment of
advisory
committee.

- (a) An independent chairman,
- (b) Two experts in ornithology,
- (c) Three experts in the feather trade,
- (d) Four other members.

All applications for addition to or removal from the Schedule to this Act shall be made to the Board of Trade, which shall refer such applications to the advisory committee, which shall, after due inquiry, submit a recommendation to the Board of Trade in regard thereto.

4.—(1) In this Act the expression “plumage” includes the skin or body of a bird with the plumage on it.

Interpre-
tation,
short title,
and com-
mencement.

(2) This Act may be cited as the Importation of Plumage (Prohibition) Act, 1921.

(3) This Act shall come into operation on the expiration of nine months after the passing thereof.

Sections 2
and 3.

SCHEDULE.

African ostriches.

Eider ducks.

CHAPTER 17.

An Act to explain proviso (4) to section twelve of the Agriculture Act, 1920, and the First Schedule to that Act so far as that Schedule amends subsection (1) of section one of the Agricultural Holdings Act, 1908, and the Agricultural Holdings (Scotland) Act, 1908, and to remove doubt as to the procedure in arbitrations as to rent under section ten of the Agriculture Act, 1920. [1st July 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Explanation
of certain
provisions of
Agriculture
Act, 1920.
10 & 11
Geo. 5. c. 76.
8 Edw. 7.
c. 28.

1.—(1) Where a demand in writing for arbitration as to the rent to be paid for a holding has been made for the purposes of section ten of the Agriculture Act, 1920 (which relates to compensation for disturbance), and has been agreed to, whether in writing or otherwise, the question as to the rent shall be referred to arbitration under the Agricultural Holdings Act, 1908.

(2) Proviso (4) to section twelve of the Agriculture Act, 1920 (which applies the provisions of that Act relating to compensation for disturbance to cottages on agricultural holdings), shall have effect, and be deemed always to have had effect, as though the words “recoverable summarily from the tenant” were therein substituted for the words “recoverable summarily by the tenant.”